

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 5/29/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	30-2023-01361611 UDR Eight80 I LP vs. Hood	The Court has read and considered the Defendant's Motion to Set Aside (Vacate) Judgment (ROA 53), Supplemental Declaration (ROA 58), Declaration of Angela Brown (ROA 57), and Plaintiff's Opposition (ROA 67). The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 39) and 2/6/2024 Minute Order. First, the Defendant attaches to his moving papers a UD-115 form that is not signed by the Plaintiff or the Court, nor filed-stamped by the Court. The "Stipulation" attached by the Defendant is not a true and correct copy of the Stipulation that was entered into by the parties. ROA 39 Stipulation for Entry of Judgment file stamped by the Orange County Superior Court on 2/6/2024 is a true and correct copy of the stipulation entered into by the parties and signed by the judicial officer at the time of the hearing, Commissioner Carmen Snuggs-Spraggins. The true and correct Stipulation (ROA 39) shows that no final lockout prior to March 7, 2024, and a money judgment was granted in favor of the Plaintiff for a total sum of \$15,119.80. The 2/6/2024 Minute Order shows that "The terms of the settlement are recited in open

		court. Each party indicates on the record that they understand and agree to the terms as stated.” California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court DENIES the Motion to Set Aside or Vacate Judgment. The Court orders the Plaintiff to give notice of the Court’s ruling.
9	30-2025-01499897 Casa La Veta Associates vs. Erwin	The Court has read and considered the Defendant’s Motion to Set Aside or Cancel Judgment (ROA 44), Defendant’s Petition to Seal (ROA 42), Plaintiff’s Opposition to Motion to Set Aside Stipulated Judgment (ROA 59), and Plaintiff’s Opposition to Motion to Seal Record (ROA 61). The Court takes Judicial Notice of the Answer to Complaint (ROA 16), Request for Entry of Default (ROA 28), Notice of Hearing OC (ROA 31), Stipulation for Entry of Judgment (ROA 33), 10/7/2026 Minute Order (ROA 32), and Declaration of Default/Non-Compliance (ROA 56). As a threshold matter, the Defendant failed to serve her motions on the Plaintiff, which is grounds for the Court to deny the Defendant’s request alone. (California Rules of Court, Rule 3.1206; <i>Newsom v. Superior Court of Sutter County</i> (2020) 51 Cal.App.5th 1093, 1098-1100.) In order to avoid delays and multiple filings on the same issue, the Court will address the merits of the Defendant’s request, although not required to under the law, due to her lack of notice to the Plaintiff. California Code of Civil Procedure § 410.50 states, “A general appearance by a party is equivalent to personal service of summons on such party.” California Code of Civil Procedure § 1014 states, “A defendant appears in an action when the defendant answers, demurs, files a notice of motion to strike, files a notice of motion to transfer pursuant to Section 396b, moves for reclassification pursuant to Section 403.040, gives the plaintiff written notice of appearance, or when an attorney gives notice of appearance for the defendant.” Here, the Defendant filed an Answer with the Court on 8/15/2025, submitting to the Court’s jurisdiction. On October 7, 2025, the case was set for a Court Trial. There is no record that the Defendant requested a continuance of the Court either by motion or in open court. Defendant, in open court, had the terms of the Stipulation of Entry of Judgment she signed read to her by the Court and stated she agreed to the terms. (ROA 32 & 33) California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) Defendant says in her moving papers that she relied on another party to handle lease obligations, but she was the only person present in Court and the person who voluntarily signed the agreement. The Defendant provides no evidence to support a claim of fraud, undue influence, or similar grounds to disturb the Stipulation. The